

have been erroneously paid by the executor (*i*), but not from purchasers for value, as from persons claiming under a marriage settlement (*j*); [and where the residuary estate had been assigned by the surviving executor to the residuary legatees, it was held by the Court of Appeal that a creditor might proceed against the residuary legatees without making the executor a party to the action (*k*). But a claim against

the executor personally for a *devastavit* in distributing the assets *without providing for the debt is barred after six years from the time of the *devastavit* (*a*); though he may be made liable after the expiration of that period, on the ground of breach of trust in an action to administer his testator's estate (*b*).]

41. **Rights of cestuis que trust.**—A *cestui que trust* may, notwithstanding the Statute of Limitations, if there has been no improper *laches*, recover from another *cestui que trust* an overpayment erroneously made to him by the trustee (*c*); and *residuary legatees*, plaintiffs in a suit, have been ordered to refund to unpaid particular *legatees* (*d*).

42. **Overpayment through misconduct of a cestui que trust.**—Where a trustee had paid to wrong parties upon the evidence of certificates which had been forged by one of the *cestuis que trust*, the Court not only compelled repayment by the wrong parties of what each had received, but also ordered the *cestui que trust* who had forged the certificates, to make up to the parties rightfully entitled, to the relief of the trustee, what should not be repaid (*e*); and in suits against trustees for breaches of trust, the Court has ordered a tenant for life who was *overpaid* by the breach of trust, to pay back to the trustees without the institution of *another suit* for the purpose (*f*).

(*i*) *Fordham v. Wallis*, 10 Hare, 217.

(*j*) *Dilkes v. Broadmead*, 2 Giff. 113; 2 De G. F. & J. 566; and see *Ridgeway v. Newstead*, 3 De G. F. & J. 474.

[(*k*) *Hunter v. Young*, 4 Ex. D. 256.]

[(*a*) *Thorne v. Kerr*, 2 K. & J. 54; *Re Gale*, 22 Ch. D. 820.]

[(*b*) *Re Marsden*, 26 Ch. D. 783; *Re Baker*, 20 Ch. D. 230; *Re Birch*, 27 Ch. D. 622.]

(*c*) *Harris v. Harris* (No. 2), 29 Beav. 110.

(*d*) *Prowse v. Spurgin*, 5 L. R. Eq. 99.

(*e*) *Eaves v. Hickson*, 30 Beav. 136.

(*f*) *Hood v. Clapham*, 19 Beav. 90; and see *Brynard v. Woolley*, 20